



CHAPTER xxiv

An Act to amend the Railway Passengers Assurance
(Consolidation) Act 1918 and for other purposes.

[9th July 1959.]

WHEREAS—

(1) The Railway Passengers Assurance Company (hereinafter called “the Company”) was originally formed by a deed of settlement dated the seventeenth day of March eighteen hundred and forty-nine (hereinafter referred to as “the deed of settlement of 1849”) for the purpose of insuring to persons travelling by railway compensation for personal injury or loss of life consequent upon or incident to railway conveyance and was completely registered and incorporated under and by virtue of the Act 7 and 8 Victoria chapter 110 on the twenty-second day of March eighteen hundred and forty-nine and was registered under the Companies Act 1862 on the sixth day of November eighteen hundred and sixty-two:

(2) The deed of settlement of 1849 was altered and added to by two subsequent deeds executed respectively in the year eighteen hundred and fifty-one and in the year eighteen hundred and sixty-six (hereinafter referred to as “the deeds of 1851 and 1866”):

(3) By the Railway Passengers Assurance (Consolidation) Act 1918 (hereinafter referred to as “the Act of 1918” whereby the enactments which prior to the passing of that Act were in force relating to the powers and duties of the Company were consolidated and amended) the deed of settlement of 1849 and the deeds of 1851 and 1866 were repealed and it was provided that notwithstanding such repeal the Company should continue to exist as incorporated and registered under the name of “the

Railway Passengers Assurance Company" subject to the provisions of that Act and with such objects and powers as were therein contained;

(4) By section 9 of the Act of 1918 it was provided that the objects of the Company should be (inter alia) to carry on the business of every kind of insurance against any loss damage injury liability misfortune contingency or event including fire marine life accident employers' liability and third party aircraft and bombardment burglary and theft fidelity and guarantee insurance and every description of insurance and reinsurance business whether similar or not to any of the preceding or whether then known or thereafter devised and to pay satisfy or compromise claims made against the Company in respect of any policies or contracts granted by or entered into with the Company which claims it might deem expedient to pay satisfy or compromise notwithstanding that the same might not be valid in law:

(5) By section 10 of the Act of 1918 the Company was authorised to enter into contracts of insurance with persons in respect of particular journeys by means of the issue of insurance tickets and provisions were made relating thereto (inter alia) that the issue of an insurance ticket should be held to be a valid execution on the part of the Company of the contract set out in the First Schedule to the Act of 1918 and the acceptance of the insurance ticket should be deemed to be the acceptance by the bona fide holder thereof of the terms and conditions of such contract and they should be binding on such holder. By the tenth proviso of the said contract it was provided that any difference between any person and the Company as to any claim on or any matter or thing arising out of or relating to an insurance ticket should be referred to arbitration under and pursuant to the provisions contained in the Act of 1918 and that the obtaining of an award should be a condition precedent to any liability of or right of action against the Company in respect of the claim matter or thing:

(6) By section 16 of the Act of 1918 it was provided that all differences between any person and the Company as to the liability or extent of the liability of the Company on or any other matter or thing arising out of or relating to an insurance ticket or any contract of insurance including any existing contract of insurance renewed after the passing of that Act or other contract made entered into or renewed by or with the Company after the passing of that Act which were referable under the provisions of that Act or of the contract to arbitration and all differences between any person and the Company as to whether a contract of insurance claimed to have been made entered into or renewed by or with the Company after the passing of the Act of 1918 had been so made entered into or renewed or was valid or void

in whole or in part should be referred to arbitration under and in accordance with the rules for arbitration contained in the Second Schedule to that Act and the obtaining of an award should be a condition precedent to any liability of or right of action against the Company in respect of any claim matter or thing which was referable as aforesaid:

(7) It is expedient that the said provisions of the Act of 1918 relating to arbitration should be amended so as to provide that differences between any person and the Company arising out of or relating to any such ticket of insurance or contract as aforesaid need not be referred to arbitration unless either such person or the Company so requires:

(8) It is expedient that the other provisions contained in this Act be enacted:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1.—(1) This Act may be cited as the Railway Passengers Assurance Act 1959.

Short and
collective
titles.

(2) The Railway Passengers Assurance (Consolidation) Act 1918 and this Act may be cited together as the Railway Passengers Assurance Acts 1918 and 1959.

2.—(1) Section 16 (Arbitration) of the Railway Passengers Assurance (Consolidation) Act 1918 shall have effect as if—

Amendment
of Railway
Passengers
Assurance
(Consolida-
tion) Act 1918.

(a) after the word “shall” where that word first occurs there were inserted the words “if so required by the Company or such person”; and

(b) after the words “this Act and” there were inserted the words “in that event”.

(2) The First Schedule to the said Act of 1918 shall have effect as if in the tenth proviso of the contract set out in that schedule—

(a) after the word “shall” where that word first occurs there were inserted the words “if so required by the Company or such person”; and

(b) after the words “and that” there were inserted the words “in that event”.

3. All costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Railway Passengers Assurance Company.

Table of Statutes referred to in this Act

Title or short title	Session and chapter
An Act for the Registration, Incorporation, and Regulation of Joint Stock Companies	7 & 8 Vict. c. 110.
Companies Act 1862	25 & 26 Vict. c. 89.
Railway Passengers Assurance (Consolidation) Act 1918	8 & 9 Geo. 5 c. xiv.

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SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d. net

PRINTED IN GREAT BRITAIN